

IN THE CIRCUIT COURT OF FAULKNER COUNTY, ARKANSAS

BRYCE PETERSON

PLAINTIFF

V.

NO. _____

MARTEN TRANSPORT LTD

DEFENDANT

COMPLAINT

Comes Plaintiff Bryce Peterson, by and through counsel Matthew E. Hartness, and for his cause of action, states:

1. Plaintiff is a resident of Faulkner County, Arkansas.
2. Plaintiff's cause of action arises from a motor vehicle collision, pedestrian injury, which occurred in Pulaski County, Arkansas.
3. Defendant Marten Transport Ltd., hereinafter referred to as "Marten," is a foreign corporation doing business in Faulkner County, Arkansas.
4. This Honorable Court has personal and subject matter jurisdiction over this matter and venue is proper herein.
5. On May 16, 2020, Plaintiff was driving North on Interstate 430 in Pulaski County, Arkansas, when he noticed another vehicle had overturned and the occupants were injured. Bryce pulled over and got out of his vehicle to assist.
6. At the same time and place Tessah Hardin was operating her vehicle and was traveling North on Interstate 430 in the far left lane. Donald Honeycut, an employee or agent of the Defendant, was operating a 2019 Freightliner, owned by Defendant, and was also traveling North on Interstate 430, in the middle lane.

7. As Bryce was assisting the injured individuals from the rollover accident, Donald Honeycutt negligently moved his tractor trailer in to the far-left lane, causing it to strike Tessah Hardin's vehicle, causing it to lose control and strike Plaintiff, and others.

8. The actions of Donald Honeycutt, for which Defendant is responsible, were the proximate cause of the injuries and damages sustained by Plaintiff. Specific acts of negligence include, but are not limited to, the following:

- a. Failing to keep a proper lookout;
- b. Failing to keep the vehicle he was driving under proper control;
- c. Careless and prohibited driving;
- d. Driving too fast for conditions;
- e. Failing to yield the right of way; and,
- f. Otherwise failing to exercise ordinary care under the circumstances.

9. At the time of the crash which gives rise to this cause of action Donald Honeycutt was operating a vehicle owned by the Defendant. At all times relevant to this cause of action Donald Honeycutt was acting within the course and scope of his employment with the Defendant. Under the doctrine of *respondeat superior* Defendant is vicariously liable for any damages which resulted from the negligence of Donald Honeycutt.

10. As a proximate result of the negligence of Donald Honeycutt, Plaintiff sustained the following injuries and damages:

- a. permanent physical injury;
- b. pain, suffering and mental anguish experienced in the past and reasonably certain to be experienced in the future;
- c. medical expenses incurred in the past and reasonably certain to be incurred

in the future; and,

d. loss of earnings and earnings capacity.

11. Plaintiff furthermore demands a trial by jury.

WHEREFORE, Plaintiff prays for judgment of and from the Defendant, in an amount adequate to compensate him for the damages he has sustained, with said amount being in excess of that required for federal court jurisdiction in diversity of citizenship cases. Plaintiff further prays for costs, interest and all other just and proper relief to which he may be entitled.

Respectfully Submitted,

THE BRAD HENDRICKS LAW FIRM
500 C Pleasant Valley Drive
Little Rock, Arkansas 72227
(501) 221-0444
(501) 661-0196 fax

BY:


MATTHEW E. HARTNESS, ABN 96005